

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present

Justice Muhammad Ali Mazhar
Justice Syed Hasan Azhar Rizvi
Justice Aqeel Ahmed Abbasi

Civil Petition No. 1242-K of 2024

*(against the order dated 20.11.2024 passed
by the High Court of Sindh at Karachi in
C.P. No. D-6249/2022)*

Ayaz Ali and another ...Petitioner(s)

Versus

Federation of Pakistan and others ...Respondent(s)

For the Petitioner(s) : Mr. Rafiq Ahmad Kalwar, ASC

For Respondent 1 : Mr. Khaleeq Ahmad, DAG
Mr. Shah Hussain, A.AG

For Respondents 2-3 : Mr. Faisal Mahmood Ghani,
ASC
Mr. K.A. Wahab, AOR

Date of Hearing : 17.07.2025

Judgment

Muhammad Ali Mazhar, J.- This Civil Petition is brought to challenge the order dated 20.11.2024 passed by the High Court of Sindh at Karachi in C.P. No. D-6249/2022.

2. The ephemeral facts of the case are that the fathers of both petitioners were serving in the officer grade in the National Bank of Pakistan (respondent No.2) and died during service. The father of Ayaz Ali (petitioner No.1) died on 11.11.2019 and he applied for the job on the deceased son's quota and submitted his application to

respondent No.2 on 27.11.2019, whereas father of Asadullah (petitioner No.2) died on 28.12.2021 and he also applied for a job on the deceased son's quota on 14.02.2022. Despite hectic efforts, neither their applications were processed nor any departmental order was passed for rejection. Therefore, both the petitioners filed Constitution Petition before the High Court of Sindh for entreating directions against respondent No.2 for the appointment of petitioners but their constitution petition was dismissed predominantly on the basis of latest dictum laid down by this Court in the case of General Post Office v. Muhammad Jalal (PLD 2024 SC 1276).

3. The learned counsel for the petitioners pointed out page No. 37 of the paper-book, which is a circular/letter dated 02.12.2011 with the nomenclature "Employment Opportunity for sons/daughters of In-service (Regular) deceased and retired/GHS/VHS Optants in clerical and non-clerical cadre". He argued that employment applications of the petitioners should have been considered in terms of this circular/policy but no response was given and the petitioners rightly approached the High Court but their petition was dismissed solely on the basis of judgment (*supra*), which cannot be considered with retrospective effect to nullify the earlier policy which was in vogue at the time when the petitioners applied for the jobs.

4. The learned counsel for respondent No.2 argued that presently a policy of 2022 is in field. He also relied on the judgment of this Court, referred above, and particularly referred to paragraph 19 thereof, wherein certain directions were issued that government and public sector employment cannot be allowed to be parceled out to the functionaries of State. These jobs

neither are nor can be made hereditary. The Constitution stipulates that equal employment and economic opportunities must be provided to all the citizens. Economic justice is a component of social justice which focuses on creating equal opportunities for all within a society in all aspects. He further articulated that in view of the aforesaid judgment; the petitioners are not entitled for any consideration. He also referred to another judgment of this Court reported as Government of Khyber Pakhtunkhwa v. Tahir Mushtaq [2025 PLC (C.S) 34] in which similar findings were also given.

5. Heard the arguments. It transpires from the record and the arguments articulated by the learned counsel for the parties that the applications moved by the petitioners for employment are still pending without any response and nothing has been produced or pointed out to demonstrate that any decision by the management was communicated to the petitioners at any point of time. There is also no skepticism that the applications were submitted immediately after death of the fathers of petitioners for consideration of appointment to a suitable post. It is also a ground reality that the learned counsel on one hand emphatically relied on the judgments of this Court rendered in the case of General Post Office and Government of Khyber Pakhtunkhwa (*supra*) but in tandem or at one fell swoop, he argued that new policy for employment opportunity to the sons/daughters of deceased and retired employees has been formulated in the year 2022 which is now in force and on its promulgation the earlier policies have been superseded and supplanted.

6. The judgment of this Court in the case of General Post Office (supra) was rendered on 26.09.2024, whereby certain civil servants' laws were taken into consideration and provisions for appointments on deceased son's quota were struck down. In the case in hand, the applications were filed when 2011 policy was in vogue which was lastly amended up to 2016, therefore, in all fairness, the applications submitted by the petitioners should have been considered according to the prevailing policy at that time which are still pending without any decision. The judgments of this Court, relied upon by the learned counsel for the respondents, would have no retrospective effect to upset the 2011 policy and this important aspect was ignored by the High Court which simply non-suited the petitioners on the basis of the judgment of this Court in the case of General Post Office (supra)

7. On 17.7.2025, this same bench in the case of Registrar, High Court of Sindh, Karachi & another versus Rehana & another (Civil Petitions No. 804-K to 807-K of 2025), has considered the doctrine of prospectivity and retrospectivity of judgments of this Court in detail. The relevant paragraphs of the judgment are reproduced as under: -

“7. The judgment in the case of General Post Office (supra) reflects that notice was issued to the respondent/petitioner which was received by his cousin who stated that the said respondent shifted abroad. The learned Additional Attorney General clarified that the respondent was not appointed as directed by the High Court Peshawar because he had shifted abroad. However, on 04.01.2024, two questions were framed by this Court on its own motion i.e. (1) Whether the policy conforms with Articles 25 and 27 of the Constitution of Islamic Republic of Pakistan insofar as it creates separate categories of persons who are to be given preference in employment; and (2) Whether the Prime Minister of Pakistan has the power to relax

rules and/or to issue the Policy. In order to ascertain as to whether the policy accords with the Constitution of the Islamic Republic of Pakistan, 1973, the learned bench issued notices to the Attorney General, Pakistan as well as to the Advocate Generals of all the Provinces under Order XXVII-A of the C.P.C. Seemingly, certain constitutional questions requiring interpretation were framed by the learned bench in exercise of its Suo motu jurisdiction therefore, with all humility to our command, the matter ought to have been dealt with according to Section (4) of the Supreme Court (Practice and Procedure) Act 2023 (as stood prior the 26th Constitutional Amendment), which provided in its original form that the matters where the interpretation of the Constitutional provisions is involved, Committee should constitute the bench comprising not less than five judges of the Supreme Court. Though Section 3 and 4 were omitted and substituted by the Supreme Court (Practice and Procedure) (Amendment) Act 2024 but the fact remains that when the judgment was rendered by learned three member bench in the case of General Post Office (supra), Section 4 was very much in field, therefore, the matter should have been referred to the Committee under Section 2 of the aforesaid Act to constitute a bench not less than five judges of this Court but we think that this elemental and crucial aspect escaped the attention of the honorable bench seized of the matter.

8. Nevertheless, an important facet cannot be lost sight of that the judgments of this Court has prospective effect unless declared otherwise. The prospective declaration of law cannot reopen the past and closed matters to avoid or prevent the multiplicity of proceedings and undermining the doctrine of finality of judgments. The doctrine of prospective overruling originated from American Judicial System, which allows to overrule or overturn/set aside a precedent that should no longer be considered a good law. The doctrine of prospective overruling demonstrates a substantial evolution and expansion in legal jurisprudence which allows this Court to render verdicts without prejudice to the past decisions. In the case of Sakhi Muhammad and another vs. Capital Development Authority, Islamabad (PLD 1991 S.C 777), it was held by this Court that the consequence of the Supreme Court judgment was that as from the date of decision all courts subordinate to the Supreme Court and all executive and quasi-judicial authorities were obliged by virtue of the Constitution to apply the rule laid down by the Supreme Court in cases

coming up before them for decision. The decision of the Supreme Court did not have and it could not be contended that it had, the effect of altering the law as from the commencement of relevant law so as to render void of its own force all relevant orders of the Authority or of the High Court made in the light of the earlier interpretation. Whereas in the case of Pakistan Medical and Dental Council & others vs. Muhammad Fahad Malik & others (2018 SCMR 1956), this Court held that the judgment of the Supreme Court, unless declared otherwise, operates prospectively. Whilst in the case of Pir Bakhsh and others vs. Chairman, Allotment Committee and others, (PLD 1987 S.C. 145), it was held that the fact that Supreme Court in an appeal, titled *Abdul Hafiz v. Rehabilitation Commissioner and others*, against the judgment of the High Court set aside the same judgment in another writ petition would not reopen the concluded rights of the parties under the decision of the High Courts against to which no appeal was filed, nor could the appellants who were respondents in that writ petition avail the benefit of the law laid down by the Supreme Court under Article 189 of the Constitution. The fact that the law laid down by this Court (supreme court) is prospective, it cannot be doubted”.

8. Good management exemplifies and represents a set of distinctive virtues and standards including wisdom, uprightness, empathy, fairness, nondiscriminatory employment policies, equal opportunity employer, congenial working environment which enables to carry on and manage the affairs of institution/establishment effectively. Here the grievance of the petitioners is that despite prevailing policy, their applications were ignored and no consideration was made for their appointment in view of the policy. If the management circulates any beneficial employment/recruitment policy then such policy should have been implemented equitably and evenhandedly across the board and not through cherry-picking to deprive its benefits to the deserving contenders.

9. As a result of the above discussion, this Civil Petition is converted into an appeal and allowed. As a consequence thereof, the impugned order of the High Court is set aside and the matter is remanded to the President of National Bank of Pakistan to consider the applications of both the petitioners, moved in 2019 and 2022 and decide the fate of their applications in accordance with the policy of the National Bank of Pakistan prevailing at that time and decide the matter and communicate the decision to the petitioners, preferably within a period of three months after receipt of the copy of this judgment.

Judge

Judge

Judge

Karachi

17.07.2025

Approved for reporting

M.Farhan